

Re: Public Records Act request — grand jury responses on file under Penal Code § 933(c) (2016-17 report)



From Brian C <____ >
To Julieta Fernandez <JFernandez@smcacre.gov>
Date 2026-08-20 16:21

Subject: Re: Public Records Act request -- grand jury responses on file under Penal Code § 933(c) (2016-17 report)

Good afternoon Julieta,

Thank you for the quick reply. I think there may be a misunderstanding about what the request seeks. I am not requesting the grand jury's report. I have the report, and I agree the Court's website is where it lives. The request is for the responses that responding agencies filed to that report.

Penal Code section 933(c) provides: "A copy of all responses to grand jury reports shall be placed on file with the clerk of the public agency and the office of the county clerk, or the mayor when applicable, and shall remain on file in those offices." That sentence names the office of the County Clerk, and it applies to the responses rather than to the report.

So the record is clear, this message clarifies -- and does not replace or withdraw -- my request of August 18, 2026, which remains:

1. All responses filed pursuant to Penal Code section 933 to the 2016-2017 San Mateo County Civil Grand Jury report "A Delicate Balance: Privacy vs. Protection" (filed July 12, 2017) -- the response letters or resolutions of each responding agency, including the City of San Mateo.

If no such responses are on file with your office, please state that. If responses are on file for some agencies but not others, please identify which agencies' responses are on file. If responses filed under section 933(c) are maintained by a different County office, please identify that office so I can direct a request there.

Because this clarifies the scope of the August 18 request rather than making a new one, I ask that the determination date continue to run from the original date of receipt.

Thank you,
Brian

On 2026-08-20 14:26, Julieta Fernandez wrote:

Good afternoon, Brian.

Your public records request was forwarded to me for response.

The San Mateo COUNTY Clerk does not maintain or have custody of the report referenced in your request. The report identified in the link below is available through the San Mateo County Superior Court's website. Accordingly, I recommend that you direct your request regarding this report, or any related court records, to the COURT Clerk of the San Mateo County Superior Court:
<https://sanmateo.courts.ca.gov/>

For your convenience, the report may be accessed through the Court's website at the link below:

A Delicate Balance: Privacy vs. Protection [1]

Sincerely,

Julieta Fernandez

Office of Mark Church

Assessor-County Clerk-Recorder &

Chief Elections Officer

555 County Center

Redwood City, CA 94063

650.363.4779 direct

650.780.9952 fax

jfernandez@smcacre.gov

www.smcacre.gov [2]

From: Brian C <____ >
Sent: Tuesday, August 18, 2026 11:45 PM
To: ACRE_CLK_CountyClerkWebMail <countyclerk@smcacre.gov>

Subject: Public Records Act request -- grand jury responses on file under Penal Code § 933(c) (2016–17 report)

CAUTION: This email originated from outside of San Mateo County. Unless you recognize the sender's email address and know the content is safe, do not click links, open attachments or reply.

Pursuant to the California Public Records Act (Gov. Code § 7920.000 et seq.), I request the following records from the Office of the County Clerk. This request seeks existing records only (Gov. Code § 7922.530).

As you are aware, Penal Code section 933(c) provides that a copy of all responses to grand jury reports shall be placed on file with the office of the county clerk and shall remain on file in that office.

1. All responses filed pursuant to Penal Code section 933 to the 2016–2017 San Mateo County Civil Grand Jury report "A Delicate Balance: Privacy vs. Protection" (filed July 12, 2017) -- the response letters or resolutions of each responding agency, including the City of San Mateo.

If responses to this report are not on file, please state so; if responses are on file for some agencies but not others, please identify which. If any portion is denied, please provide exemption citations per Gov. Code § 7922.540.

Please acknowledge receipt of this request so the record reflects the date received.

Thank you,

Brian

Links:

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- [1] <https://sanmateo.courts.ca.gov/system/files/surveillance.pdf>
[2] <https://protect-us.mimecast.com/s/DcQSC73yp8c49GAQhNSw0-/>